

**RE: FORMAL NOTICE OF TORT CLAIM (TEX. CIV. PRAC. & REM. CODE § 101.101)**

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**From:** [REDACTED]  
**To:** ty.prause@co.colorado.tx.us, jay.johannes@co.colorado.tx.us  
**Cc:** e.magee@allison-bass.com  
**Date:** March 19, 2026 03:12 UTC

March 19, 2026

**TO:** Hon. Ty Prause, Colorado County Judge; Jay Johannes, Colorado County Attorney; 400 Spring Street; Columbus, Texas 78934

**RE: FORMAL NOTICE OF TORT CLAIM (TEX. CIV. PRAC. & REM. CODE § 101.101)**

**Claimant:** Harold "Wayne" [REDACTED]

**Incident Date:** January 19, 2026

**Location:** Colorado County Jail

Gentlemen:

Please accept this letter as formal notice of a tort claim against Colorado County, Texas, pursuant to the **Texas Tort Claims Act (TTCA)**.

**I. DESCRIPTION OF INCIDENT**

On January 19, 2026, my spouse, [REDACTED], was subjected to a physical "takedown" by Colorado County Jail personnel. This incident resulted in a Traumatic Brain Injury (TBI) and a documented **83-minute delay** in summoning Emergency Medical Services (EMS). The injury was caused by the condition or use of tangible personal or real property (the facility floor and/or restraints) under the control of County personnel.

**II. DESCRIPTION OF INJURY AND DAMAGE**

As a direct and proximate result of the County's negligence in the training, supervision, and medical monitoring of its staff, I, Harold "Wayne" [REDACTED], have suffered and continue to suffer a **Loss of Consortium**. This includes the profound loss of companionship, affection, solace, emotional support, and the services of my spouse.

**III. PURPOSE OF NOTICE**

This notice is provided within the statutory 180-day period to preserve all state law claims. Because the County continues to withhold the objective audio/video evidence and the identities of the specific jailers involved, I am currently unable to provide a final valuation of these damages.

Be advised that I intend to move forward with a **Rule 202 Petition for Deposition Before Suit** to investigate these claims and identify all liable parties.

Respectfully,

McKnight Matter – Correspondence

5/27/26, 4:11 PM

/s/

Harold "Wayne"